

STATE OF NEW YORK

403--A

2025-2026 Regular Sessions

IN SENATE

(Prefiled)

January 8, 2025

Introduced by Sens. MYRIE, GONZALEZ, GOUNARDES, RIVERA -- read twice and ordered printed, and when printed to be committed to the Committee on Finance -- recommitted to the Committee on Finance in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the social services law and the state finance law, in relation to establishing a SNAP and cash assistance fraud victims compensation fund

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The social services law is amended by adding a new section
2 95-b to read as follows:

3 § 95-b. SNAP and cash assistance fraud victims compensation program.
4 1. The office of temporary and disability assistance shall establish and
5 maintain a SNAP and cash assistance fraud victims compensation program
6 to compensate persons who receive benefits from the supplemental nutri-
7 tion assistance program (SNAP) or cash assistance program who have had
8 such benefits stolen or who have been defrauded of such benefits.

9 2. The SNAP and cash assistance fraud victims compensation program
10 shall have an application process which shall be provided in English and
11 languages other than English, including but not limited to the ten most
12 commonly spoken languages, aside from English, in the state.

13 3. The inspector general and the attorney general shall work with the
14 commissioner of temporary and disability assistance to determine whether
15 a person who receives benefits under the SNAP or cash assistance program
16 was defrauded of such benefits or if such benefits were otherwise
17 stolen.

18 § 2. The state finance law is amended by adding a new section 99-uu to
19 read as follows:

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 § 99-uu. SNAP and cash assistance fraud victims compensation fund. 1.
2 There is hereby established in the joint custody of the state comp-
3 troller and the commissioner of the office of temporary and disability
4 assistance a fund to be known as the SNAP and cash assistance fraud
5 victims compensation fund, hereinafter referred to as the "fund".

6 2. Money allocated to the fund shall be kept separate and shall not be
7 commingled with any other funds in the custody of the state comptroller.

8 3. The fund shall consist of all moneys appropriated for the purpose
9 of such account, moneys transferred to such account pursuant to law,
10 monies received from civil penalties regarding the supplemental nutri-
11 tion assistance program, contributions consisting of promises or grants
12 of any money or property of any kind or value, or any other thing of
13 value, including grants or other financial assistance from any agency of
14 government and moneys required by the provisions of this section or any
15 other law to be paid into or credited to this account.

16 4. Money expended from such fund shall be used consistent with the
17 SNAP and cash assistance fraud victims compensation program as estab-
18 lished under section ninety-five-b of the social services law.

19 § 3. This act shall take effect immediately.